SERVICE CLASSIFICATION NO. 9
GENERAL - LARGE

Applicable to Use of Service for

Light, heat, and power for general uses for which no other service classification specifically applies and where the Customer's initial requirements are expected to be in excess of 10 kilowatts subject to the Common Provisions and Special Provisions of this Service Classification.

Character of Service

Of the various characteristics of service listed and more fully described in General Rule 4, the following may be designated for service by the Company under this Service Classification, subject to the limitations set forth in such Rule. Frequencies and voltages shown are approximate. All are continuous.

Standard Service

Any derivative of the standard alternating current, 3 phase, 4 wire system at 60 cycles and 120/208 volts.

Non-Standard Service

Low Tension Alternating Current - 60 cycles:

Single phase at 120/240 volts
Three phase at 265/460 volts
Three phase at 240 volts
Two phase at 120/240 or 230 or 240 volts

High Tension Alternating Current - 60 cycles:

Three phase at 2,400/4,150 volts
Three phase at 3,000 or 7,800 volts
Three phase at 6,900 volts
Three phase at 13,200 volts
Three phase at 26,400 volts
Three phase at 33,000 volts
Single phase and three phase at 2,400 volts
Three phase at 69,000 volts
Three phase at 138,000 volts

SERVICE CLASSIFICATION NO. 9 - Continued
GENERAL - LARGE

Rate I - General - Large

Applicability: To all Customers other than those billed under Rate II, Rate III, Rate IV, or Rate V.

Delivery Charges, applicable to all Customers

Customer Charge	$ 72.00 per month	
Demand Delivery Charges, per kW of maximum demand	Low Tension Service	High Tension Service
Charges applicable for the months of June, July, August, and September	$44.05 per kW	$30.41 per kW
Charges applicable for all other months	$34.50 per kW	$21.17 per kW
Energy Delivery Charge, per kWhr	Low Tension Service	High Tension Service
Charges applicable for all months	$0.0154 per kWhr	$0.0143 per kWhr

Reactive Power Demand Charge, applicable as specified in General Rule 10.11.

Additional Delivery Charges and Adjustments, as specified in General Rule 26.

SERVICE CLASSIFICATION NO. 9 – Continued
GENERAL - LARGE

[RESERVED FOR FUTURE USE]

SERVICE CLASSIFICATION NO. 9 – Continued
GENERAL - LARGE

Rate II - General - Large - Time-of-Day

Applicability:

Mandatory:

(1) To Customers who were billed under Rate II as of February 20, 2012;
(2) To any Customer, other than Customers taking service under Rider J, whose monthly maximum demand exceeds 1,500 kW in any annual period ending September 30;
(3) To any new Customer, other than a new Customer taking service under Rider J, whose monthly maximum demand in the Company's estimate will exceed 1,500 kW during the first year of service;
(4) To successors of Customers referred to in (1), (2) and (3) above; and
(5) To any Customer taking service under Rider J, whose monthly maximum demand exceeds 900 kW in any annual period ending September 30, or in the case of a new Customer taking service under Rider J, whose monthly maximum demand in the Company's estimate will exceed 900 kW during the first year of service;

provided the Customer is not subject to billing under Rate IV or Rate V.

A Customer with multiple meters whose demand meter registrations are added together for billing purposes pursuant to the provisions of this Rate Schedule shall be billed under Rate II if the Customer qualifies for Rate II pursuant to one or more of the criteria stated above and if at least one of the meters registers 500 kW or more in any month in any annual period ending September 30.

Customers subject to Rate II pursuant to (2) above shall commence billing under Rate II when the Customer’s entire usage is subsequent to December 31 of the annual period ending September 30 in which the Customer becomes subject to Rate II.

A Rate II Customer shall be transferred to and billed under Rate I in the first billing period that commences after the Customer's monthly maximum demand does not exceed 900 kW for 12 consecutive months unless the Customer elects to be billed under Rate III.

SERVICE CLASSIFICATION NO. 9 – Continued
GENERAL - LARGE

Rate II - General - Large - Time-of-Day

[RESERVED FOR FUTURE USE]

SERVICE CLASSIFICATION NO. 9 - Continued
GENERAL - LARGE

Rate II - General - Large - Time-of-Day - Continued

Delivery Charges, applicable to all Customers

Customer Charge	$510.00	per month

Demand Delivery Charges, per kW of maximum demand for each specified time period

Charges applicable for the months of June, July, August, and September		
Monday through Friday, 8 AM to 6 PM (high/low tension service)	$11.33	per kW
Monday through Friday, 8 AM to 10 PM (high/low tension service)	$22.82	per kW
All hours of all days (low tension service only)	$20.61	per kW
Charges applicable for all other months		
Monday through Friday, 8 AM to 10 PM (high/low tension service)	$19.41	per kW
All hours of all days (low tension service only)	$5.85	per kW

The demand charge for each time period will be determined by multiplying the maximum demand for the respective time period by the rate applicable to the demand for that time period. The total demand charge will be the sum of the charges for each of the time periods.

Energy Delivery Charge, per kWhr

Charges applicable for all months		
All hours of all days	$0.0079	per kWhr

Reactive Power Demand Charge, applicable as specified in General Rule 10.11.

Additional Delivery Charges and Adjustments, as specified in General Rule 26.

SERVICE CLASSIFICATION NO. 9 – Continued
GENERAL - LARGE

Rate III – General - Large – Voluntary Time-of-Day

Applicability:

To Customers not subject to Rate II, IV, or V who elect to be billed at a time-of-day rate. Rate III is not available to Customers served under General Rule 11 or Special Provision H of this SC unless the Customer takes service under this Service Classification for all of its requirements.

Billing under Rate III shall commence in the first billing period following the Company's receipt and acceptance of the Customer's written request to be served under Rate III and the installation of AMI metering equipment. New Customers electing Rate III at the commencement of service will be billed under Rate I until AMI metering equipment is installed.

A Customer who elects to transfer from Rate I to Rate III will be ineligible for billing at Rate I for one year subsequent to the commencement of billing at Rate III.

Billing for a Customer who elects to transfer from Rate III to Rate I shall commence under Rate I with the first billing period following the Company's receipt and acceptance of the Customer's written request for service under Rate I. Such Customer will be ineligible for billing at Rate III for a period of one and one-half years subsequent to the commencement of billing at Rate I.

SERVICE CLASSIFICATION NO. 9 - Continued
GENERAL - LARGE

Rate III - General - Large - Voluntary Time-of-Day - Continued

Delivery Charges, applicable to all Customers

Customer Charge	$72.00	per month

Demand Delivery Charges, per kW of maximum demand for each specified time period

Charges applicable for the months of June, July, August, and September		
Monday through Friday, 8 AM to 6 PM (high/low tension service)	$12.75	per kW
Monday through Friday, 8 AM to 10 PM (high/low tension service)	$28.64	per kW
All hours of all days (low tension service only)	$27.33	per kW
Charges applicable for all other months		
Monday through Friday, 8 AM to 10 PM (high/low tension service)	$18.15	per kW
All hours of all days (low tension service only)	$7.04	per kW

The demand charge for each time period will be determined by multiplying the maximum demand for the respective time period by the rate applicable to the demand for that time period. The total demand charge will be the sum of the charges for each of the time periods.

Energy Delivery Charge, per kWhr

Charges applicable for all months		
All hours of all days	$0.0079	per kWhr

Reactive Power Demand Charge, applicable as specified in General Rule 10.11.

Additional Delivery Charges and Adjustments, as specified in General Rule 26.

SERVICE CLASSIFICATION NO. 9 - Continued
GENERAL - LARGE

Rate IV - General – Large - Standby Service

Applicability: To Customers billed under Standby Service rates pursuant to General Rule 20 who are not subject to billing under Rate V.

Delivery Charges, applicable to Existing Standby Service Customers on Phase-In

Customer Charge $124.00 per month

Demand Delivery Charges

For each day in the billing period for which As-used Daily Demand Delivery Charges are to be determined, the As-used Daily Demand Delivery Charge for each time period shall be determined by multiplying the daily maximum demand during the time period by the per-kilowatt As-used Daily Demand Delivery Charge applicable to that time period. As-used Daily Demand Delivery Charges, as billed, are equal to the sum of the As-used Daily Demand Delivery Charges for the time periods.

1) Applicable to all Customers, except for Station Use by Wholesale Generators:

	Low Tension Service	High Tension Service
a) Contract Demand Delivery Charge, per kW of Contract Demand		
Charge applicable for all months	$9.88 per kW	$4.31 per kW
b) As-used Daily Demand Delivery Charges, per kW of Daily Peak Demand for each specified time period		
Charges applicable for the months of June, July, August, and September		
Monday through Friday, 8 AM to 6 PM	$0.7171 per kW	$0.7140 per kW
Monday through Friday, 8 AM to 10 PM	$1.8141 per kW	$0.7940 per kW
Charge applicable for all other months		
Monday through Friday, 8 AM to 10 PM	$1.2280 per kW	$0.8450 per kW

2) Applicable to Station Use by Wholesale Generators:

	Low Tension Service	High Tension Service
a) Contract Demand Delivery Charge, per kW of Contract Demand		
Charge applicable for all months	$9.88 per kW	$4.31 per kW
b) As-used Daily Demand Delivery Charges, per kW of Daily Peak Demand for each specified time period		
Charges applicable for the months of June, July, August, and September		
Monday through Friday, 8 AM to 10 PM	$1.8141 per kW	$0.7940 per kW
Charge applicable for all other months		
Monday through Friday, 8 AM to 10 PM	$0.8595 per kW	$0.4797 per kW

SERVICE CLASSIFICATION NO. 9 - Continued
GENERAL - LARGE

Rate IV - General – Large - Standby Service - Continued

Delivery Charges, applicable to Existing Standby Service Customers on Phase-In - Continued

Reactive Power Demand Charge, applicable as specified in General Rule 10.11.

Additional Delivery Charges and Adjustments, as specified in General Rule 26.

SERVICE CLASSIFICATION NO. 9 - Continued
GENERAL - LARGE

Rate IV - General – Large - Standby Service

Delivery Charges, applicable to all other Customers

Customer Charge $72.00 per month

Demand Delivery Charges

For each day in the billing period for which As-used Daily Demand Delivery Charges are to be determined, the As-used Daily Demand Delivery Charge for each time period shall be determined by multiplying the daily maximum demand during the time period by the per-kilowatt As-used Daily Demand Delivery Charge applicable to that time period. As-used Daily Demand Delivery Charges, as billed, are equal to the sum of the As-used Daily Demand Delivery Charges for the time periods.

1) Applicable to all Customers, except for Station Use by Wholesale Generators:

	Low Tension Service	High Tension Service
a) Contract Demand Delivery Charge, per kW of Contract Demand		
Charge applicable for all months	$7.94 per kW	$0.65 per kW
b) As-used Daily Demand Delivery Charges, per kW of Daily Peak Demand for each specified time period		
Charges applicable for the months of June, July, August, and September		
Monday through Friday, 8 AM to 6 PM	$0.7050 per kW	$0.7020 per kW
Monday through Friday, 8 AM to 10 PM	$2.3094 per kW	$1.1747 per kW
Charge applicable for all other months		
Monday through Friday, 8 AM to 10 PM	$1.3632 per kW	$1.0592 per kW

2) Applicable to Station Use by Wholesale Generators:

	Low Tension Service	High Tension Service
a) Contract Demand Delivery Charge, per kW of Contract Demand		
Charge applicable for all months	$7.94 per kW	$0.65 per kW
b) As-used Daily Demand Delivery Charges, per kW of Daily Peak Demand for each specified time period		
Charges applicable for the months of June, July, August, and September		
Monday through Friday, 8 AM to 10 PM	$2.3094 per kW	$1.1747 per kW
Charge applicable for all other months		
Monday through Friday, 8 AM to 10 PM	$1.0071 per kW	$0.7062 per kW

SERVICE CLASSIFICATION NO. 9 - Continued
GENERAL - LARGE

Rate IV - General – Large - Standby Service - Continued

Delivery Charges, applicable to all other Customers - Continued

Reactive Power Demand Charge, applicable as specified in General Rule 10.11.

Additional Delivery Charges and Adjustments, as specified in General Rule 26.

SERVICE CLASSIFICATION NO. 9 - Continued
GENERAL - LARGE

Rate V - General – Large - Standby Service (Large)

Applicability: To Customers billed under Standby Service rates pursuant to General Rule 20 where: (a) the Contract Demand is greater than 1500 kW and the Customer does not take service under Rider J; (b) the Contract Demand is greater than 900 kW and the Customer takes service under Rider J; (c) high-tension service is supplied at 138,000 volts; or (d) the Customer would otherwise take service under Rate II on an optional basis.

Delivery Charges, applicable to Existing Standby Service Customers on Phase-In

Customer Charge	Low Tension Service	High Tension Service below 138 kV	High Tension Service at 138 kV
Charge per month	$1,360.00	$1,360.00	$375.50

Demand Delivery Charges

For each day in the billing period for which As-used Daily Demand Delivery Charges are to be determined, the As-used Daily Demand Delivery Charge for each time period shall be determined by multiplying the daily maximum demand during the time period by the per-kilowatt As-used Daily Demand Delivery Charge applicable to that time period. As-used Daily Demand Delivery Charges, as billed, are equal to the sum of the As-used Daily Demand Delivery Charges for the time periods.

1) Applicable to all Customers, except for Station Use by Wholesale Generators:

	Low Tension Service	High Tension Service below 138 kV	High Tension Service at 138 kV
a) Contract Demand Delivery Charge, per kW of Contract Demand			
Charge applicable for all months	$5.90 per kW	$5.03 per kW	$1.81 per kW
b) As-used Daily Demand Delivery Charges, per kW of Daily Peak Demand for each specified time period			
Charges applicable for the months of June, July, August, and September			
Monday through Friday, 8 AM to 6 PM	$0.7509 per kW	$0.7534 per kW	$0.6578 per kW
Monday through Friday, 8 AM to 10 PM	$1.8666 per kW	$0.8434 per kW	$0.0958 per kW
Charge applicable for all other months			
Monday through Friday, 8 AM to 10 PM	$1.3232 per kW	$0.9350 per kW	$0.3686 per kW

SERVICE CLASSIFICATION NO. 9 - Continued
GENERAL - LARGE

Rate V - General – Large - Standby Service (Large) - Continued

Delivery Charges, applicable to Existing Standby Service Customers on Phase-In - Continued

Demand Delivery Charges - Continued

2) Applicable to Station Use by Wholesale Generators:

	Low Tension Service	High Tension Service
a) Contract Demand Delivery Charge, per kW of Contract Demand		
Charge applicable for all months	$5.90 per kW	$5.03 per kW
b) As-used Daily Demand Delivery Charges, per kW of Daily Peak Demand for each specified time period		
Charges applicable for the months of June, July, August, and September		
Monday through Friday, 8 AM to 10 PM	$1.8666 per kW	$0.8434 per kW
Charge applicable for all other months		
Monday through Friday, 8 AM to 10 PM	$0.9173 per kW	$0.5265 per kW

Reactive Power Demand Charge, applicable as specified in General Rule 10.11.

Additional Delivery Charges and Adjustments, as specified in General Rule 26.

SERVICE CLASSIFICATION NO. 9 - Continued
GENERAL - LARGE

Rate V - General – Large - Standby Service (Large) - Continued

Delivery Charges, applicable to all other Customers

Customer Charge	Low Tension Service	High Tension Service below 138 kV	High Tension Service at 138 kV
Charge per month	$510.00	$510.00	$510.00

Demand Delivery Charges

For each day in the billing period for which As-used Daily Demand Delivery Charges are to be determined, the As-used Daily Demand Delivery Charge for each time period shall be determined by multiplying the daily maximum demand during the time period by the per-kilowatt As-used Daily Demand Delivery Charge applicable to that time period. As-used Daily Demand Delivery Charges, as billed, are equal to the sum of the As-used Daily Demand Delivery Charges for the time periods.

1) Applicable to all Customers, except for Station Use by Wholesale Generators:

	Low Tension Service	High Tension Service below 138 kV	High Tension Service at 138 kV
a) Contract Demand Delivery Charge, per kW of Contract Demand			
Charge applicable for all months	$2.69 per kW	$1.22 per kW	$0.59 per kW
b) As-used Daily Demand Delivery Charges, per kW of Daily Peak Demand for each specified time period			
Charges applicable for the months of June, July, August, and September			
Monday through Friday, 8 AM to 6 PM	$0.7385 per kW	$0.7411 per kW	$0.7411 per kW
Monday through Friday, 8 AM to 10 PM	$2.3661 per kW	$1.2506 per kW	$0.1916 per kW
Charge applicable for all other months			
Monday through Friday, 8 AM to 10 PM	$1.4657 per kW	$1.1738 per kW	$0.4216 per kW

SERVICE CLASSIFICATION NO. 9 - Continued
GENERAL - LARGE

Rate V - General – Large - Standby Service (Large) - Continued

Delivery Charges, applicable to all other Customers - Continued

Demand Delivery Charges - Continued

2) Applicable to Station Use by Wholesale Generators:

	Low Tension Service	High Tension Service
a) Contract Demand Delivery Charge, per kW of Contract Demand		
Charge applicable for all months	$2.69 per kW	$1.22 per kW
b) As-used Daily Demand Delivery Charges, per kW of Daily Peak Demand for each specified time period		
Charges applicable for the months of June, July, August, and September		
Monday through Friday, 8 AM to 10 PM	$2.3661 per kW	$1.2506 per kW
Charge applicable for all other months		
Monday through Friday, 8 AM to 10 PM	$1.0722 per kW	$0.7777 per kW

Reactive Power Demand Charge, applicable as specified in General Rule 10.11.

Additional Delivery Charges and Adjustments, as specified in General Rule 26.

SERVICE CLASSIFICATION NO. 9 – Continued
GENERAL - LARGE

Common Provisions Applicable to Rate I, Rate II, Rate III, Rate IV, and Rate V

Minimum Monthly Charge

Customers billed under Rate I, II, and III will be subject to the Minimum Monthly Charge, as described in General Rule 10.10, when the Minimum Monthly Charge exceeds the monthly pure base revenue. The Contract Demand under Rate I, II, and III is determined each month and is equal to the Customer's highest registered demand in the most recent 18 months, or the highest registered demand on the Customer's account if the account has less than 18 months of demand history, provided, however, that if a Customer requests and receives a reduction in the Contract Demand (as explained in General Rule 10.10), the demand history prior to the reduction will not be considered in determining the Contract Demand for subsequent months. For a Customer billed under Special Provision (D) of this Service Classification, the billable demand will be the basis for the Customer's Contract Demand. The Minimum Monthly Charge is not applicable to Customers billed under Rate IV or Rate V.

Supply Charges

Only Full Service Customers are subject to the supply and supply-related charges and adjustments specified in General Rule 25. Rider M may apply, as specified under that Rider.

Increase in Rates and Charges

The rates and charges under this Service Classification, including minimum charge or Minimum Monthly Charge, Additional Delivery Charges and Adjustments, and Supply and Supply-related Charges and Adjustments if applicable, are increased by the applicable percentage as explained in General Rule 30 and shown on the related Statement.

SERVICE CLASSIFICATION NO. 9 – Continued
GENERAL - LARGE

Common Provisions Applicable to Rate I, Rate II, Rate III, Rate IV, and Rate V - Continued

General Rules

For general rules, regulations, terms and conditions under which service will be supplied, see General Rules to this Rate Schedule. Riders that may be applied to this Service Classification are specified under General Rule 24.

Terms of Payment

Net cash on presentation of bill, subject to late payment charge in accordance with provisions of General Rule 12.1.

Applications for Service

For forms of application under this Service Classification, see the Application Forms section of the General Rules.

Term

One year from the date of installation of service hereunder; terminable thereafter by the Customer upon 30 days' prior notice in writing and by the Company in accordance with law or the provisions of this Rate Schedule.

SERVICE CLASSIFICATION NO. 9 – Continued
GENERAL - LARGE

Special Provisions

(A) The Company's electric service under this Service Classification will be metered and furnished directly to the Customer of the Company upon the individual application of such Customer; provided, however, that the Customer may redistribute or furnish electric service to:

(1) the Customer's nonresidential tenants or nonresidential occupants in the building or premises; or

(2) the Customer's residential tenants or occupants in the building or premises during the period between construction or substantial renovation of the building wiring and the installation of submetering authorized as specified in Rider G; or

(3) transient or non-transient occupants of a facility operated primarily for transients, such as a hotel or motel; or

(4) rooming houses, dormitories, hospitals, nursing homes, assisted living facilities or senior living facilities as defined in 16 NYCRR Part 96.1, and other institutional care facilities, where the tenants or occupants do not occupy individual flats or apartments equipped with separate kitchen and bathroom facilities; or

(5) portions of the Customer's premises which are impractical to meter separately, such as: (i) concession stands in office building lobbies or amusement parks not completely separated from the areas surrounding them, (ii) individual offices in professional suites having facilities and office services shared by the occupants of such offices, and (iii) incidental storage space provided in connection with occupancy of other portions of the Customer's premises; or

(6) occupants of the Customer's premises who are primarily engaged in the business of supplying incidental goods or services to the Customer or the Customer's students or employees; or

(7) the Customer's residential tenants or occupants in the building or premises used and occupied predominantly for non-residential purposes, provided that the electric service to the residential units is either submetered pursuant to Rider G or the internal wiring to the residential units was installed prior to January 1, 1977, and

(a) the residential tenants occupy space which does not exceed 10 percent of the total square foot area supplied under this Service Classification if low-tension service is furnished; or
(b) the residential connected load does not exceed 50 percent of the total connected load supplied hereunder, based on information provided by the Customer, if high-tension service is furnished. For purposes of this provision, "connected load" is the Customer's total load on the electrical system if all of the electrically powered equipment (such as lighting, air conditioning and motors) is operating at one time; or

(8) campgrounds, recreational trailer parks, marinas, or parking facilities with plug-in electric vehicle charging stations, as described in 16 NYCRR Part 96; or

(9) electrically-heated nursing homes, pursuant to order of the Public Service Commission in Case 91-E-0462.

SERVICE CLASSIFICATION NO. 9 – Continued
GENERAL - LARGE

Special Provisions - Continued

(B) A Customer who redistributes or furnishes electric energy for use of tenants or occupants pursuant to Special Provision (A) may only resell, make a specific charge for, or remeter (or submeter) or measure any of the electric energy so redistributed or furnished: (1) in accordance with Rider G; or (2) if the Customer engaged in resale, remetering (or submetering) to non-residential tenants or occupants under the Wholesale Service Classification of the Company's Schedule for Electricity Service as of July 31, 1951. If the Customer is providing electric vehicle charging services to the public through a publicly available charging station, the use by the Customer of a time based, kWh based, or other fee structure for such charging services does not constitute a specific charge for the electric service furnished under this Service Classification.

(C) Whenever a Customer's maximum demand for a period of 12 consecutive months shall not have exceeded 5 kilowatts, the Customer will thereafter be billed under SC 2.

SERVICE CLASSIFICATION NO. 9 – Continued
GENERAL - LARGE

Special Provisions - Continued

(D) [RESERVED FOR FUTURE USE]

SERVICE CLASSIFICATION NO. 9 – Continued
GENERAL - LARGE

Special Provisions – Continued

(E) On and after April 1, 2010, a request made to the Company to install service facilities for a new or substantially renovated multiple dwelling must be accompanied by either a declaration that direct metering of each dwelling unit is intended or a copy of a submetering application filed with the Public Service Commission pursuant to 16 NYCRR Part 96.

(F) An eligible Customer's monthly bills for usage on and after July 15, 1982 will be subject to an adjustment pursuant to the requirements of Section 3, Chapter 459, 1982 N. Y. Laws.

(G) A Recharge New York ("RNY") allocation is a kW allocation made under the Recharge New York Program pursuant to Part CC of Chapter 60 of the Laws of 2011. The contract between each Customer and NYPA shall establish the term of RNY service, the RNY kW allocation, and whether all or half of the power and energy served under the RNY Program will be supplied by NYPA. Customers who receive an RNY allocation under the RNY Program will be subject to General Rule 11.

NYPA shall provide at least 30 days' prior written notice to the Company for the initial delivery of RNY power and energy to an individual Customer, changes in the kW allocation, and termination of any kW allocation, unless otherwise agreed upon by NYPA and the Company. Service will be initiated, modified, or terminated as of the Customer's first scheduled meter reading date that begins at least ten days after receipt of the notice.

Billing will be issued under this Special Provision as follows:

(1) Supply: Pursuant to the Customer's contract with NYPA, NYPA will supply either half or all of the power and energy allocated to the Customer under the RNY Program. If only half of the power and energy allocated to the Customer under the RNY Program is supplied by NYPA, the balance of the Customer's allocation and any remaining requirements not served under General Rule 11 will be supplied by: (a) the Company if the Customer is a Full Service Customer; (b) the Customer's ESCO or the Direct Customer's "Supplier," as applicable, if the Customer is a Retail Access Customer; or (c) NYPA under Rider U. Only RNY power and energy supplied by the Company will be subject to the supply and supply-related charges and adjustments specified in General Rule 25.

SERVICE CLASSIFICATION NO. 9 – Continued
GENERAL - LARGE

Special Provisions – Continued

(G) - Continued

(2) Delivery Service:

(a) Customers who are billed for Delivery Service under RNY are subject to all delivery charges applicable under this Service Classification, except that the System Benefits Charge and the Revenue Decoupling Mechanism Adjustment will not be applicable to all power and energy delivered under the RNY Program, up to the RNY allocation, regardless of supplier.

(b) If a Customer is eligible for both the RNY Program and Special Provision H of this Service Classification, the Customer will receive Delivery Service under RNY for the RNY load unless the Customer makes a one-time election to receive Delivery Service under Special Provision H for: (i) the entire RNY load for a "New Customer" as defined in Special Provision H, or (ii) the RNY load above the "Baseline Billing Determinants" for an "Existing Customer" as both terms are defined in Special Provision H.

The following provisions are applicable to RNY Customers who elect to receive Delivery Service under Special Provision H:

(i) The election may be made if the Customer is served under General Rule 11 for RNY only.

(ii) The election must be made in writing before the commencement of billing under RNY or under both RNY and Special Provision H.

(iii) Delivery Service will not be provided under RNY and Special Provision H for the same load unless the Customer demonstrates to the Company a financial need that meets the requirements for individually negotiated agreements specified in sub-paragraph a) or b) of General Rule 20.7.

(c) If a Customer elected to receive Delivery Service under Special Provision H pursuant to sub-paragraph (b) above, but is not billed under that Special Provision because the Company did not receive a new Tax Certificate or Tax Certification, such Customer will receive Delivery Service for the RNY load under RNY unless and until delivery rate reductions are reinstated under Special Provision H following receipt of a new Tax Certificate or Tax Certification.

SERVICE CLASSIFICATION NO. 9 – Continued
GENERAL - LARGE

Special Provisions – Continued

(G) - Continued

(3) Customers who participate in the RNY Program are exempt from the Minimum Monthly Charge (General Rule 10.10).

SERVICE CLASSIFICATION NO. 9 – Continued
GENERAL - LARGE

Special Provisions – Continued

(H) Customers who qualify for tax credits pursuant to the Excelsior Jobs Program ("EJP") Act (L. 2011, c. 61) may receive reductions on their electric delivery charges as described hereunder.

(1) Definitions for purposes of this Special Provision:

"Baseline Billing Determinants" are established for Existing Customers based on the twelve monthly billing periods immediately preceding the Company's receipt of the Customer's Certificate of Eligibility. Baseline billing determinants are based on: (a) registered demand and kilowatthours for Customers served under Rate I; (b) registered demand and kilowatthours for each specified time period, as applicable, for Customers served under Rate II or Rate III; and (c) the Contract Demand for the billing period immediately preceding the Company's receipt of the Customer's Certificate of Eligibility for Customers served under Rate IV or Rate V. The Company may estimate or adjust the baseline billing determinants if: (a) sufficient billing information does not exist; or (b) the Company determines that the billing history is not representative of the Customer's usage and demand characteristics. The Baseline Billing Determinants that are established per month will remain fixed for the entire EJP term.

"Certificate of Eligibility" means the document, as defined in the EJP Act, which the Empire State Development ("ESD") issues to a Customer that has been accepted into the EJP for its location. The Customer's receipt of a Certificate of Eligibility does not by itself guarantee electric rate reductions under this Special Provision.

"Certificate of Tax Credit" means the document, as defined in the EJP Act, which the ESD issues to an EJP participant to claim tax credits for the taxable year certified on the Certificate of Tax Credit after ESD has verified that the participant has met all eligibility criteria for its premises. The Certificate of Tax Credit also entitles the Customer to receive utility rate reductions for the premises, provided the Customer meets the requirements of this Special Provision.

"Existing Customer" means, solely for purposes of this Special Provision, a Customer who is not a "New Customer."

"New Customer" means, solely for purposes of this Special Provision, a Customer who commenced service at the premises within twelve months of receiving its Certificate of Eligibility and can demonstrate that: (a) its activities are largely or entirely different in nature from that of the previous Customer; (b) if the activities are not so different, the owner(s), operator(s) and manager(s) are substantially different; or (c) business has not been conducted at the premises for at least two monthly billing periods prior to the Customer's receipt of a Certificate of Eligibility.

SERVICE CLASSIFICATION NO. 9 – Continued
GENERAL - LARGE

Special Provisions – Continued

(H) - Continued

(2) Eligibility

Initial Certification:

To receive service under this Special Provision, the Customer must be directly metered by the Company and must provide a copy of its Certificate of Eligibility and applicable account information to the Company within 60 days of receiving the Certificate of Eligibility from ESD.

Annual Certification:

After the Initial Certification, the Customer will be eligible for the reduction in delivery charges specified under this Special Provision for up to ten consecutive years, provided: (1) the Customer submits to the Company, each year, a copy of the Certificate of Tax Credit ("Tax Certificate") issued by ESD for the prior tax year; or (2) ESD certifies to the Company that ESD issued a Tax Certificate to the Customer ("Tax Certification") for the prior tax year.

The delivery rate reductions specified hereunder will be applied for the 12 consecutive monthly billing periods commencing with the first monthly billing period having a "from" date on or after the Company's receipt of the initial Tax Certificate or Tax Certification. On the first anniversary of the commencement of delivery rate reductions, and each anniversary thereafter, delivery rate reductions will commence for another 12 monthly billing periods if the Company receives a new Tax Certificate or Tax Certification on or before the anniversary. If a new Tax Certificate or Tax Certification is not received by the anniversary and the Customer received delivery rate reductions in the billing period that ended on the anniversary, the Company will continue to apply the delivery rate reductions for up to an additional three monthly billing periods ("Grace Period") to allow time for the Company to receive either a new Tax Certificate or Tax Certification. If a new Tax Certificate or Tax Certification is received during the Grace Period, any rate reductions applied during the Grace Period will be counted toward the 12 monthly billing periods that commenced on the anniversary. If a new Tax Certificate or Tax Certification is not received by the end of the Grace Period, the rate reductions will cease at the end of the Grace Period. If a new Tax Certificate or Tax Certification is received after the end of the Grace Period, the rate reductions will be applied prospectively for the remaining billing periods of the 12 monthly billing periods that commenced on the anniversary.

Should there be a gap of one or more years before the Company receives a new Tax Certificate or Tax Certification, the Customer will be eligible for delivery rate reductions for: (a) the twelve monthly billing periods that commence on the current year's anniversary, if the Company receives the new Tax Certificate or Tax Certification on or before the anniversary, or (b) the remaining billing periods of the twelve monthly billing periods that commenced on the current year's anniversary, if the new Tax Certificate or Tax Certification is received after the anniversary.

SERVICE CLASSIFICATION NO. 9 – Continued
GENERAL - LARGE

Special Provisions – Continued

(H) - Continued

(3) Restrictions as to Eligibility

Service will not be provided under this Special Provision if: (a) the Customer is served under Rider J, Rider R, or Rider Y of this SC; (b) service is furnished solely or predominantly for telephone booths, warning lights, bus stop shelters, signboards, cable television and telecommunication local distribution facilities, or similar structures or locations; or (c) service is provided for construction purposes or for activities of a temporary nature (as described in General Rule 5.2.7). Customers who discontinue service under this Rider to commence service under Rider J will not be eligible thereafter to receive service under this Special Provision.

(4) Reductions on Electric Delivery Charges

(a) If the Customer is served under General Rule 11 for any requirements, the Customer will first be served under those programs; provided, however, that the Customer will first be served under this Special Provision for Delivery Service if the Customer elects to receive Delivery Service under this Special Provision for RNY load pursuant to Special Provision (G).

(b) The Customer will receive a reduction on SC 9 delivery charges for each monthly billing period based on the Percentage Rate Reduction specified in (c) as follows:

For Existing Rate I, II, and III Customers, the Percentage Rate Reduction will be applied to the Demand Delivery Charges and Energy Delivery Charges as determined for the billing period associated with the monthly registered demand and monthly registered kilowatthours in excess of the kW and kWhr Baseline Billing Determinants.

For Existing Rate IV and Rate V Customers, the Percentage Rate Reduction will be applied to (i) the Customer Charge, Contract Demand Delivery Charges, and As-used Daily Demand Delivery Charges as determined for the billing period multiplied by (ii) the ratio of the current Contract Demand in excess of the Baseline Billing Determinant to the current Contract Demand, provided that ratio shall never exceed 1.

For New Rate I, II, and III Customers, the Percentage Rate Reduction will be applied to the Demand Delivery Charges and Energy Delivery Charges as determined for the billing period associated with the monthly registered demand and monthly registered kilowatthours. For New Rate IV and Rate V Customers, the Percentage Rate Reduction will be applied to the Customer Charge, Contract Demand Delivery Charges, and As-used Daily Demand Delivery Charges as determined for the billing period.

The Revenue Decoupling Mechanism will not be applicable to load served under this Special Provision. No rate reductions will be applied to other delivery charges, including but not limited to, the Billing and Payment Processing Charge, and other delivery charges and adjustments specified in General Rule 26.

SERVICE CLASSIFICATION NO. 9 – Continued
GENERAL - LARGE

Special Provisions – Continued

(H) - Continued

(4) - Continued

(c) Percentage Rate Reduction:

The applicable Percentage Rate Reduction is based on the date the Customer commenced service under this Special Provision, as shown below:

Rate Class	Commencement Date		
	6/1/2012 - 2/28/2014	3/1/2014 - 1/31/2017	2/1/2017 and after
SC 9 – Rate I, III or IV	0%	49%	39%
SC 9 – Rate II or V	0%	45%	34%

To the extent that marginal delivery costs change over time, the Company may file an amended percentage with the PSC for its review and approval.